

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

Date Purchased:

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WINDEL CESAR,

Plaintiff,

--against--

THE CITY OF NEW YORK, POLICE OFFICER CARLOS
ARRECIS and POLICE OFFICER JAMES GARRITY,

Defendants,

SUMMONS

Plaintiff designates New York
County as the place of trial.

Basis of the venue is the
Location of Occurrence

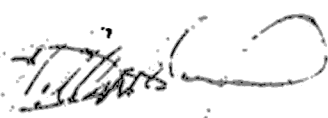
County of New York

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

JURY TRIAL DEMANDED

Dated: Brooklyn, New York
August 30, 2019



DMITRY LEVITSKY, ESQ.

LEVITSKY LAW FIRM

Attorneys for Plaintiff

WINDEL CESAR

3163 Coney Island Avenue 2nd Floor

Brooklyn, NY 11235

(347) 462-1660

Our File No.: DL00515

To:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER CARLOS ARRECIS
c/o New York City Police Department- 17th Precinct
167 E 51st Street
New York, NY 10022

POLICE OFFICER JAMES GARRITY
c/o New York City Police Department- 17th Precinct
167 E 51st Street
New York, NY 10022

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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WINDEL CESAR,

Plaintiff,

Index No.:

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COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER CARLOS
ARRECIS and POLICE OFFICER JAMES GARRITY,

Defendants,

-----X

Plaintiff, by his attorneys, LEVITSKY LAW FIRM, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

**AS FOR A FIRST CAUSE OF ACTION FOR ASSAULT AND BATTERY ON BEHALF OF
THE PLAINTIFF, WINDEL CESAR**

1. That at the time of the commencement of this action, Plaintiff resided in the County
of Kings, City and State of New York.

2. That all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.

3. That the defendant, **THE CITY OF NEW YORK**, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.

4. That prior hereto on October 16, 2018, and within the time prescribed by law, a
sworn Notice of Claim stating, among other things, the time when and place where the injuries
and damages were sustained, together with plaintiff's demands for adjustment or payment thereof,

and that thereafter **THE CITY OF NEW YORK** refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H hearing of plaintiff was held on March 06, 2019.

6. That on October 03, 2018, and at all times hereinafter mentioned and upon information and belief, defendant, **THE CITY OF NEW YORK**, employed **POLICE OFFICER CARLOS ARRECIS** and **POLICE OFFICER JAMES GARRITY**, as agents, servants and/or employees.

7. That on October 03, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **WINDEL CESAR**, was lawfully driving near 38th Street and 1st Avenue, County of New York, City and State of New York.

8. That on October 03, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **WINDEL CESAR**, was assaulted and battered by defendants, **POLICE OFFICER CARLOS ARRECIS** and **POLICE OFFICER JAMES GARRITY**, who were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**, at the aforesaid premises.

9. That on October 03, 2018, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on October 03, 2018, and at all times hereinafter mentioned and upon information and belief the defendants, **POLICE OFFICER CARLOS ARRECIS** and **POLICE**

OFFICER JAMES GARRITY, who committed the aforementioned assault and battery upon the plaintiff, **WINDEL CESAR**, were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**.

11. That on October 03, 2018, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, **WINDEL CESAR**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT HIRING AND
RETENTION ON BEHALF OF THE PLAINTIFF, WINDEL CESAR**

14. Plaintiff, repeats and re-alleges each and allegations contained in the paragraphs of the complaint marked and designated "1" through "13" with full force and effect.

15. That defendant, **THE CITY OF NEW YORK**, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants **POLICE OFFICER CARLOS ARRECIS** and **POLICE OFFICER JAMES GARRITY**, who assaulted, battered and violated the civil rights of the plaintiff, **WINDEL CESAR**.

16. That the defendant, **THE CITY OF NEW YORK**, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, **POLICE OFFICER CARLOS**

ARRECIS and **POLICE OFFICER JAMES GARRITY**, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, **WINDEL CESAR**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE ARREST OF THE
PLAINTIFF, WINDEL CESAR**

18. Plaintiff, repeats and re-alleges each and allegations contained in the paragraphs of the complaint marked and designated “1” through “17” with full force and effect.

19. That on October 03, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER CARLOS ARRECIS** and **POLICE OFFICER JAMES GARRITY**, were working within the scope of their employment and authority with defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, **WINDEL CESAR**.

20. That on October 03, 2018, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, **WINDEL CESAR**, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

22. By the reason of the foregoing, the plaintiff, **WINDEL CESAR**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE IMPRISONMENT OF
THE PLAINTIFF, WINDEL CESAR**

23. Plaintiff, repeats and re-alleges each and allegations contained in the paragraphs of the complaint marked and designated “1” through “22” with full force and effect.

24. That on October 03, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER CARLOS ARRECIS** and **POLICE OFFICER JAMES GARRITY**, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That defendants, **POLICE OFFICER CARLOS ARRECIS** and **POLICE OFFICER JAMES GARRITY**, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, **WINDEL CESAR**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL AND NEGLIGENT
INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF THE PLAINTIFF,
WINDEL CESAR**

27. Plaintiff, repeats and re-alleges each and allegations contained in the paragraphs of the complaint marked and designated “1” through “26” with full force and effect.

28. The defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER CARLOS ARRECIS** and **POLICE OFFICER JAMES GARRITY**, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, **WINDEL CESAR**.

30. That as a result of said intentional and negligent acts, the plaintiff, **WINDEL CESAR**, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, **WINDEL CESAR**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION ON
BEHALF OF THE PLAINTIFF, WINDEL CESAR**

32. Plaintiff, repeats and re-alleges each and allegations contained in the paragraphs of the complaint marked and designated "1" through "31" with full force and effect.

33. The defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER CARLOS ARRECIS** and **POLICE OFFICER JAMES GARRITY**, were acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested and falsely imprisoned the plaintiff, **WINDEL CESAR**, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

34. The defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER CARLOS ARRECIS** and **POLICE OFFICER JAMES GARRITY**, acting under color of law and within the scope of their authority, deprived the plaintiff, **WINDEL CESAR**, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

35. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

36. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

37. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER CARLOS ARRECIS** and **POLICE OFFICER JAMES GARRITY**, acting under color of law and within their authority as law enforcement officers within the employ of defendants, **THE NEW YORK CITY POLICE DEPARTMENT**.

38. That the defendants' actions were not privileged or immune.

39. That the defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER CARLOS ARRECIS** and **POLICE OFFICER JAMES GARRITY**, were not acting with immunity when they deprived plaintiff of his civil rights.

40. By the reason of the foregoing, the plaintiff, **WINDEL CESAR**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR PUNITIVE DAMAGES ON
BEHALF OF THE PLAINTIFF, WINDEL CESAR**

41. Plaintiff, repeats and re-alleges each and allegations contained in the paragraphs of the complaint marked and designated "1" through "40" with full force and effect.

42. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

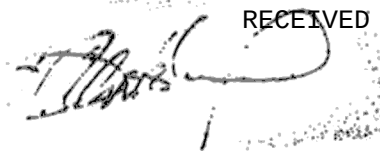
43. The defendant, **THE CITY OF NEW YORK**, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not

limited to **POLICE OFFICER CARLOS ARRECIS** and **POLICE OFFICER JAMES GARRITY**, herein-above alleged.

44. By the reason of the foregoing, the plaintiff, **WINDEL CESAR**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, **WINDEL CESAR**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, **WINDEL CESAR**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, **WINDEL CESAR**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, **WINDEL CESAR**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, **WINDEL CESAR**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, **WINDEL CESAR**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, **WINDEL CESAR**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action.

Dated: Brooklyn, New York
August 30, 2019



DMITRY LEVITSKY, ESQ.
LEVITSKY LAW FIRM
Attorneys for Plaintiff
WINDEL CESAR
3163 Coney Island Avenue 2nd Floor
Brooklyn, NY 11235
(347) 462-1660
Our File No.: DL00515

VERIFICATION

STATE OF NEW YORK

SS:

COUNTY OF KINGS

Windel Cesar

, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

Summons & Verified Complaint

and know the contents thereof, and the

same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED:

Brooklyn, New York

September 4th, 2019

X



Sworn to before me this

4th day of September, 2019

Notary Public

YURIY YAROSLAVSKIY
Notary Public, State of New York
No. 02YA6324118
Qualified in Queens County
Commission Expires May 4, 2019

6/7/23

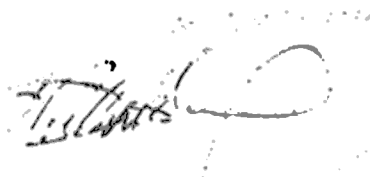
ATTORNEY'S VERIFICATION

DMITRY LEVITSKY, ESQ. , an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LEVITSKY LAW FIRM, attorneys of record for Plaintiff, **WINDEL CESAR**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff(s) is that Plaintiff(s) is/are not presently in the county wherein the attorneys for the plaintiff(s) maintain their offices.

DATED: Brooklyn, New York
August 30, 2019



DMITRY LEVITSKY, ESQ.

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SUPREME COURT OF THE STATE OF NEW YORK
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--against--

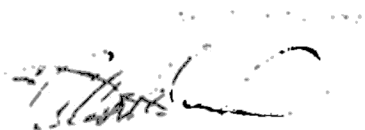
THE CITY OF NEW YORK, POLICE OFFICER CARLOS ARRECIS and POLICE OFFICER
JAMES GARRITY,

Defendants,

SUMMONS AND VERIFIED COMPLAINT

LEVITSKY LAW FIRM
Attorneys for Plaintiff
3163 Coney Island Avenue 2nd Floor
Brooklyn, NY 11235
(347) 462-1660

The undersigned attorney hereby certifies, pursuant to 22 NYCRR 130-1.1-a that he/she has read the within papers and that same are not frivolous as that term is defined in 22 NYCRR 130-1.1(c).



Dmitry Levitsky, Esq.